

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY

IN THE SUPREME COURT FOR THE STATE OF MISSISSIPPI

2021 NOV -2 P 1:18

2021-TS-01191

CHANCERY CLERK

CV2016-422(W)

BY DC B

MATTHEW REARDON
APPELLANT

v.

PHYLLIS MARIE CROWDER
APPELLEE

In re: MATTHEW OLIVER REARDON, Petitioner

**PETITION FOR WRIT OF PROHIBITION
TO BE DIRECTED TO THE TRIAL JUDGE**

MATTHEW OLIVER REARDON
Plaintiff (Pro-Se)
117 County Road 401
Oxford, MS 38655
Telephone: (662) 205-6711
Email: matt@mattreardon.com

COMES NOW your *Appellant*, MATTHEW OLIVER REARDON, and respectfully prays that this honorable court, through much needed intervention now sought into the above styled matter, issue a writ of prohibition to be directed to the trial judge whilst simultaneously granting appellant's previous petitioned request for a writ of mandamus. Appellant states claims that all filed documents and evidence should convey the seriousness of all ongoing legal matters which continue to show as interlinked/connected through one way OR another with a common denominator of the appellee and false allegations levied against the Appellant by the Appellee over and over again. As such and out of an abundance of caution due to the prior history,

SCANNED

Appellant feels that it would be a justifiable and fitting request for , and this court to enter a preliminary injunction and order of protection and relief into matters involving the appellant, appellee, and this trial judge until further order of this court in order to get the major grievances at hand addressed and sorted out. Appellant states his reasons for application for such petition is listed in CANON 2 and CANON 3 of the Code of Judicial Conduct, and appellant would list those specific grievances out as the following:

- 1) **A judge must avoid lending the prestige of judicial office for the advancement of the private interests of others. For example, a judge must not use the judge's judicial position to gain advantage in a civil suit.**
 - a) Appellant states that pursuant to the Combined Notice of Appeal and Petition for Writ of Mandamus filed 10/12/2021, the trial judge at that point had an obligation to recuse from any further proceedings as civil litigation was commencing before the Mississippi Supreme Court on the referenced cause, notice, and petition.
 - b) Due to the combination of a PLETHORA of concurrent legal matters that have hurled themselves at the Appellant, Appellant and his spouse parenting 3 minor children full-time, and the fact that Appellant's earnings potential continues to get targeted and chipped away through one form or another, Appellant has had to file various petitions and documents in multiple courts under a "paupers' oath", this being no different in order to not prejudicially disadvantaged even further and the likelihood of suffering even more irreparable damages.
 - c) That on Friday, 10/29/2021, This very trial judge DENIED appellant's In Forma Pauperis Petition without giving ANY written response or reason for denial. Appellant feels that a denial of a pauper's oath in non-contested matters without any justifying reason or written response given by the trial judge should be alarming as is, due to the unfair advantage levied against the party aggrieved by the cost of mandatory filing fees,

particularly in extraordinary situations. However, "alarming" doesn't even come close in this particular situation that Appellant would reference to as nothing short of APPALLING in order to weigh strategic advantage towards the appellee and this trial judge due to the bizarre nature of the current events which fall out of appellant's control. Appellant further states that on multiple occasions, the trial judge was made aware that the current obligations for child support were far outside of the justifiable range of 14% adjusted gross income, not to mention the minor child had immorally been ripped away from her father due to the bizarre, contumacious actions of the minor child's mother whom is your appellee in this matter

- 2) A judge shall hear and decide all assigned matters within the judge's jurisdiction except those in which disqualification is required. *Code of Judicial Conduct Canon 3(B)(1)*

a) Disqualification in this cause came into effect when Appellant filed his notice of appeal *and petition for writ of mandamus on 10/12/2021.*

b) On the aforementioned date (10/12/2021), not only was disqualification required due to the pending writ of mandamus petitioned for by appellant, *but the jurisdiction for this particular grievance at hand shifted from the Chancery Court of Lafayette County to the Mississippi Supreme Court*

- 3) A judge shall be faithful to the law and maintain professional competence in it. A judge shall not be swayed by partisan interests, public clamor, or fear of criticism. *Code of Judicial Conduct Canon 3(B)(2)*

a) Over and over again in Motions Appellant has stated that he felt he wasn't afforded a fair hearing guaranteed through established well-settled law, Article 3 of the MS Bill of Rights, as well as the Federal Constitution in that time and time again he was being mandated to prove his absolute innocence 100% while appellee continued to be taken at her word despite having a proven track record of falsely accusing appellant of crimes in order to immorally keep full control and custody of the minor child

4) A judge shall perform judicial duties without bias or prejudice. A judge shall not, in the performance of judicial duties, by words or conduct manifest bias or prejudice

a) Appellant states the trial judge's denial of his *in forma pauperis* petition has taken the shape and form of prejudicial and biased treatment most certainly when assessing the true history of this cause stemming back to May 1st, 2017.

5) Judges should disqualify themselves in proceedings in which their impartiality might be questioned by a reasonable person knowing all the circumstances or for other grounds provided in the Code of Judicial Conduct or otherwise as provided by law.

Code of Judicial Conduct Canon 3(E)(2)

a) Under this rule, a judge should disqualify himself or herself whenever the judge's impartiality might be questioned by a reasonable person knowing all the circumstances, regardless whether any of the specific rules in Section 3E(1) apply.

6) A judge must perform judicial duties impartially and fairly. A judge who manifests bias on any basis in a proceeding impairs the fairness of the proceeding and brings the judiciary into disrepute.

The issuance of a writ of prohibition, while considered to be a common law remedy, is governed by *Ubi jus ibi remedium* and the equitable principle that **there is no wrong without a remedy**.

The function of the Writ of Prohibition has been extended to cover situations where, even though the inferior court has jurisdiction, the superior court deems it necessary and advisable to issue the writ to prevent some palpable and irremediable injustice. *Planters Insurance Co. v. Cramer*, 47 Miss. 200 (1872), 73 C.J.S. Prohibition §§ 1 and 2 (1951); 63 Am.Jur.2d Prohibition §§ 1 and 2 (1972).

The writ has also been issued to restrain a judge from proceeding in a case in which he is disqualified to sit. *Peters v. Jamieson*, 48 Haw. 247, 397 P.2d 575 (1964); *Cooper v. Howard*, 267 Ky. 287, 102 S.W.2d 18 (Ky. 1937); 73 C.J.S. Prohibition § 11i (1951); 63 Am.Jur.2d Prohibition § 27 (1972).

Without waiving away any of his rights, Appellant hereby makes notice reserves and preserves his rights to a Takings Claim under the England-Jennings Reservation which allows for remedy to grievances and damages through a takings claim utilizing the Federal Courts in the absence of proper and sufficient redress is not obtained in the State Courts without such action being barred by way of res judicata or collateral estoppel.

RESPECTFULLY SUBMITTED THIS 2nd DAY OF NOVEMBER, 2021



MATTHEW REARDON

APPELLANT

117 CR 401

OXFORD, MS 38655

662-550-9752

matt@mattreardon.com

I, Matthew Reardon, hereby provides a Certificate of Service stating that I served a copy of the above petition on all involved parties through US Mail, Personal Service, or any other approved electronic means of transmission on November 2, 2021



Matthew Reardon

Appellant

662-550-9752

matt@mattreardon.com

STATE OF MISSISSIPPI

COUNTY OF LAFAYETTE

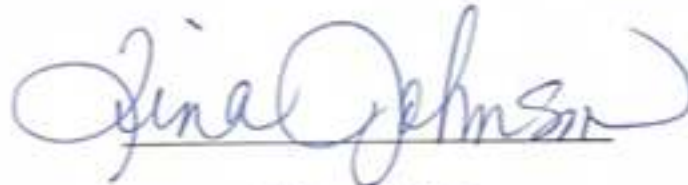
Personally appeared before me, the undersigned authority in and for the aforesaid County and State, the within named, Matthew Oliver Reardon, who, after being first duly sworn, states that the matters contained in the above and foregoing Petition for Writ of Prohibition is true and correct as therein stated.

This the 2nd day of November, 2021



Matthew Reardon

SWORN TO AND SUBSCRIBED BEFORE ME, this the ^{2nd} ~~11th~~ day of ^{November} ~~October~~ 2021.



Notary Public



X

X

X

X